

LAW AND MOTION TENTATIVE RULINGS

DATE: JULY 2, 2026 TIME: 8:30 A.M.

No. 21CV00575

BANK OF AMERICA, N.A. v. CORNEJO

(UNOPPOSED) PLAINTIFF BANK OF AMERICA'S MOTION FOR ENTRY OF JUDGMENT PURSUANT TO STIPULATION (CCP § 664.6)

Pursuant to Code of Civil Procedure section 664.6 and the settlement agreement between the parties (Forbes Declaration, Exhibit 1), judgment in the sum of \$7,977.81 will be entered in favor of plaintiff and against defendant Mael Alejandro Cornejo. The Court will sign the proposed orders submitted by plaintiff.

No. 22CV02837

DOE v. SANTA CRUZ CITY SCHOOLS

PLAINTIFF'S MOTION TO SET ASIDE DISMISSAL

The motion is denied.

A first amended complaint ("FAC") was filed on August 13, 2023. Plaintiff asserts he was a victim of childhood sexual abuse. He argues the perpetrator, Steven Myers, was employed by Defendant Santa Cruz City Schools ("District" or "SCCS"). Myers worked at Branciforte Middle School. Myers had a meeting with plaintiff and his parents, and Myers recommended that plaintiff participate in the Traveling School Summer Program, which Myers supervised and was part of the District. (FAC at ¶ 19.) Based upon Myers's recommendation, plaintiff participated in the Traveling School Summer Program in 1983. It was at this time plaintiff alleges he was groomed for abuse, sexually assaulted, and abused by Myers. (FAC at ¶ 18.) Causes of action alleged are (1) childhood sexual abuse as to Myers, (2) intentional infliction of emotional distress as to Myers, (3) negligent hiring, supervision, and retention of unfit employee pursuant to Government Code sections 815.2 and 820 against SCCS, (4) failure to report suspected child abuse pursuant to Government Code sections 815.2, 815.6, and 820 against SCCS, (5) negligent supervision of minor pursuant to Government Code sections 815.2 and 820 against SCCS, and (6) negligence against Does 41-50.

On June 12, 2025, this Court granted plaintiff's counsel's motion to be relieved. Plaintiff did not retain new counsel. Following three orders to show cause requiring plaintiff's appearance, and plaintiff's failure to appear, this Court finally dismissed the action with prejudice on May 14, 2026.